

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 856

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO PROTECTION OF GRAVES; AMENDING SECTION 27-502, IDAHO CODE, TO
REVISE PROVISIONS REGARDING PROHIBITED ACTS, TO PROHIBIT CERTAIN ACTS,
TO PROVIDE EXEMPTIONS, TO PROVIDE A PENALTY, TO PROVIDE FOR SEIZURE OF
EVIDENCE AND REMAINS, AND TO MAKE TECHNICAL CORRECTIONS; AND DECLARING
AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 27-502, Idaho Code, be, and the same is hereby
amended to read as follows:

27-502. PROHIBITED ACTS. (1) Except as provided in section 27-503,
Idaho Code, no person shall ~~wilfully~~ willfully remove, mutilate, deface,
injure or destroy any cairn or grave. Persons disturbing graves through in-
advertence, including by construction, mining, or logging, shall cause the
human remains to be reinterred. The expense for such reinterment shall be at
least partially borne by the state historical society with the exception of
acts prohibited by subsection (2) of this section that are not exempted by
subsection (3) of this section.

(2) No person or entity shall:

(a) Possess, sell, purchase, or lease any artifacts or any human re-
mains taken from a cairn, grave, or burial site ~~or human remains taken~~
~~from a cairn or grave on or after January 1, 1984,~~ in a manner other than
that authorized under section 27-503, Idaho Code, ~~or subsection (3) of~~
this section;

(b) Publicly display or exhibit any human remains; or

~~(c) Sell any human artifacts or human remains taken from a cairn or~~
~~grave.~~

(c) Sell or advertise the sale of any material advertised as real human
remains.

(3) The provisions of this section ~~do~~ shall not apply to:

~~(a) The possession or sale of artifacts discovered in or taken from lo-~~
~~cations other than cairns or graves or artifacts that were removed from~~
~~cairns or graves by other than human action; or~~

~~(b) (a) Actions taken in the performance of official law enforcement~~
~~duties, county coroner, or any other governmental duties and actions~~
taken in accordance with the instructions of government officials;

(b) Actions taken in the care of a decedent in compliance with Idaho law
by a licensed medical practice or care center, mortuary, cemetery, hu-
man remains transportation service, first responder service, or medi-
cal transportation service;

(c) Actions taken by state-licensed medical centers, medical research
facilities, or other research centers in good standing with the state

1 of Idaho and federally registered as a tax-exempt organization with the
2 internal revenue service;
3 (d) Actions taken by public museums or regionally accredited certifi-
4 cate-granting or degree-granting postsecondary education institutions
5 registered in good standing with the state of Idaho and federally regis-
6 tered as a tax-exempt organization with the internal revenue service;
7 (e) Actions taken by an entity to facilitate transportation of human
8 remains to or from such museums or regionally accredited certifi-
9 cate-granting or degree-granting postsecondary education institutions
10 in accordance with contractual obligations to such museum or educa-
11 tional entity;
12 (f) Any work in compliance with the revised uniform anatomical gifts
13 act, chapter 34, title 39, Idaho Code, or the national organ transplant
14 act, 42 U.S.C. 274e(c) (2);
15 (g) Any possession of a decedent by a loved one or good Samaritan await-
16 ing response by those described in paragraphs (a), (b), and (c) of this
17 subsection;
18 (h) Any action deemed exempt by the Idaho attorney general;
19 (i) Any action or human remains specimen as provided in section 27-503,
20 Idaho Code, or the federal native American graves protection and repa-
21 triation act;
22 (j) Any action taken in accordance with or by the representative hold-
23 ing right of disposition of cremated human remains;
24 (k) Possession of cremains, as defined in section 54-1102, Idaho Code;
25 (l) Possession of protected religious relics as provided in section
26 73-402, Idaho Code; and
27 (m) Actions taken by persons to turn in human remains, in good faith, to
28 law enforcement or the county coroner.
29 (4) A violation of the provisions of this section shall be a felony pun-
30 ishable as provided in section 18-112, Idaho Code.
31 (5) Seizure of evidence of a violation:
32 (a) Evidence of a violation of the provisions of this section shall be
33 subject to seizure by persons authorized to enforce the provisions of
34 this section and subject to forensic and DNA testing.
35 (b) Evidence seized pursuant to paragraph (a) of this subsection shall
36 be subject to forfeiture upon the order of a court if the court deter-
37 mines by a preponderance of the evidence that the evidence was used in,
38 or constitutes the fruit of, a violation of this section.
39 (c) Human remains forfeited pursuant to paragraph (b) of this subsec-
40 tion shall be sent to the county coroner at the conclusion of all pro-
41 ceedings related to the violation of the provisions of this section.

42 SECTION 2. An emergency existing therefor, which emergency is hereby
43 declared to exist, this act shall be in full force and effect on and after
44 July 1, 2026.